

terms of settlement.

The Court also has reviewed the request for Plaintiff's award of attorney's fees in the amount of \$33,333.33, which is one-third of the gross settlement. This amount is fair and reasonable, given it is a discounted award from the original amount sought by counsel and includes expenses up to \$15,000.

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

**Ruling**

The motion is **granted**. The Court will execute and file the Proposed Order lodged on December 10, 2025. Plaintiff's counsel is ordered to serve notice of entry of the Order to all parties on the service list. No appearance is required at the April 29, 2026 hearing.

**15. 9:00 AM CASE NUMBER: C23-03089**  
**CASE NAME: DIEGO DEL CASTILLO VS. THE ANCHOR SHACK DIVE AND TRAVEL, LLC**  
**\*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**  
**FILED BY: JOHNSON, JESSICA**  
**\*TENTATIVE RULING:\***

Plaintiff Jessica Johnson's Motion for Leave to File First Amended Complaint filed on February 18, 2026 is not opposed and is **granted**. Accordingly, the Court make the following orders:

1. Plaintiff shall prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling no later than ten (10) days from the date of the hearing.
2. Plaintiff shall file and serve the proposed First Amended Complaint attached to the Declaration of Counsel Mark Venardi no later than fifteen (15) days from the date of the hearing of this motion and file a proof of service with the Court.
3. Answers are due no later than thirty (30) days from the service.

**16. 9:00 AM CASE NUMBER: C24-00719**  
**CASE NAME: EMILY CROSS VS. TARIM HOLDINGS, LLC**  
**\*HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

The motion to strike and dismiss the First Amended Complaint (FAC), filed by Qasim Tarin specially appearing, is **denied**.

**Background**

On April 2, 2024, Plaintiff Emily Louise Cross, in pro per, filed a signed complaint for Wrongful Eviction naming "Qasim Tarim" as defendant. The complaint alleges that on April 14, 2023, Plaintiff was locked out of a commercial building located at 505 W. 2nd Street, Antioch, California, and refers in its body

to "the owner Qasim Tarim." The complaint bears case number C24-00719 on its first page.

On December 26, 2024, Qasim Tarin, specially appearing through counsel Hoge, Fenton, Jones & Appel, filed a motion to quash service of summons. The motion was unopposed and came on for hearing on April 16, 2025. On April 17, 2025, the Court signed an order granting the motion and quashing service; the order was filed on April 18, 2025. The caption of the order identifies the defendant as "Qasim Tarim"; the attorney designation identifies counsel as "Attorneys for Qasim Tarin, Specially Appearing." On April 18, 2025, Plaintiff filed an unopposed motion for relief under Code of Civil Procedure section 473(b), on the ground that she had never been served with the motion to quash. On July 30, 2025, the Court granted Plaintiff's motion for relief, vacated the order quashing service, ordered Plaintiff to arrange for personal service of the summons and complaint on Qasim Tarin no later than 30 days from the date of the order, gave Plaintiff leave to amend the complaint, and memorialized the parties' agreement that service of "documents" going forward would be made by email to defense counsel Rob Keitamo.

On August 11, 2025, plaintiff electronically filed the FAC. The caption of the FAC names a single defendant: "Tarim Holdings, LLC." The first page does not contain the case number, and the pleading does not contain a handwritten signature; it was electronically filed through the Court's e-filing system and bears the clerk's electronic file stamp reflecting case number C24-00719. No new summons was issued on the FAC.

On October 23, 2025, Andrew C. McClelland of the Hoge, Fenton firm sent plaintiff a letter stating that "my office represents Defendant Qasim Tarin in this matter," advising that the prior handling attorney Rob Keitamo no longer worked for the firm and requesting that Plaintiff "comply with the Court's order and serve the First Amended Complaint as well as an issued Summons containing the name of the party listed in your First Amended Complaint by Friday, October 31, 2025. My office is willing to accept e-mail service of these documents. If we do not receive that paperwork by the specified date, we will take appropriate actions to have your Complaint dismissed with prejudice." On November 19, 2025, Mr. McClelland extended Plaintiff's deadline to November 21, 2025. On November 21, 2025, Plaintiff served the FAC on counsel electronically, without a summons.

On December 29, 2025, Qasim Tarin filed the present Motion to Strike and Dismiss the FAC, supported by his own declaration and that of Attorney McClelland. The attorney designation on each of the moving papers states: "Attorneys for Defendant Qasim Tarin, Specially Appearing." Mr. Tarin's declaration states that he is "not in any way affiliated with or aware of any business known as 'Tarim Holdings, LLC,'" that he is "a member of a business entity known as Tarin Holdings LLC," and that Tarin Holdings LLC "has not retained" moving counsel. In paragraph 1 of his declaration, Mr. McClelland states that Hoge, Fenton is counsel of record for "Tarim Holdings, LLC" and "has not been retained to represent Tarin Holdings LLC."

The motion seeks to strike the FAC and dismiss the action with prejudice on three grounds: (1) the FAC is unsigned in violation of Code of Civil Procedure section 128.7, (2) the FAC fails to include the case number as required by California Rule of Court 2.111(5), and (3) the FAC improperly substitutes a new defendant, "Tarim Holdings, LLC," for Qasim Tarin without leave of court, without issuance of a new summons, and without proper service within the time specified in the Court's July 30, 2025 order.

On December 30, 2025, plaintiff filed an opposition. She argues (1) the FAC is deemed signed under California Rule of Court 2.257 because it was electronically filed, (2) electronic service was authorized and defendant had actual notice, (3) she amended in good faith because Attorney Keitamo told her the proper defendant was the LLC instead of Mr. Tarin, and (4) any defects can be cured by further amendment.

### **Standard**

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc. § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

Before filing a motion to strike, the moving party must meet and confer in person, by video conference, or by telephone with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading. (Code Civ. Proc. § 435.5.) A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike." (Code Civ. Proc., § 435.5, subd. (a)(4).)

### **Analysis and Orders**

The motion is brought by Qasim Tarin, who asserts that he is no longer a party to the case because he is not named in the FAC. A non-party lacks standing to move to strike. (See Code Civ. Proc., § 435, subd. (b)(1) ["Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof . . ."].)

The motion is **denied** for Mr. Tarin's lack of standing, and the Court does not reach the substantive arguments.

The opening line of the December 26, 2024 motion to quash described Defendant as "named in this action incorrectly as Qasim Tarim." Moving counsel's October 23, 2025 letter acknowledged that the First Amended Complaint names "a different party as the Defendant than the name listed on the original Summons," and directed Plaintiff to serve a summons "containing the name of the party listed in your First Amended Complaint," Tarim Holdings, LLC, together with the FAC, by email on counsel. The letter raised no objection to the named entity and offered to accept email service. Plaintiff served the FAC by email but did not obtain a summons. Paragraph 1 of Attorney McClelland's declaration in support of this motion identifies his firm as counsel of record for Tarim Holdings, LLC, an entity Mr. Tarin's own declaration in support of the motion states does not exist. Mr. Tarin seeks dismissal of the action with prejudice on the ground, among others, that Plaintiff failed to properly serve Tarim Holdings, LLC. That is the very entity counsel had directed her to serve and that his own declaration identifies his firm as representing.

Plaintiff filed a sur-reply on April 22, 2026 without obtaining leave of court. No authority provides for the filing of a sur-reply absent leave of court. (See, e.g., *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.) The sur-reply argues that Defendant's reply raised new matters not addressed

in the moving papers, including claims that Plaintiff was properly served with the motion and had notice of it through a March 12, 2026 hearing. Plaintiff states she was not served with the motion to strike, that the Court informed her of the April 29, 2026 hearing date, and that Defendant failed to meet and confer before filing the motion as required by Code of Civil Procedure section 435.5. Defendant objected to the sur-reply on April 24, 2026, on the ground that no leave was sought or granted and that the arguments either were or could have been raised in Plaintiff's opposition.

In its discretion, the Court has reviewed both filings. The sur-reply does not affect the disposition of the motion, which is denied on standing grounds. The Court declines to strike the sur-reply. Going forward, all parties shall comply with the Code of Civil Procedure and the California Rules of Court. Code of Civil Procedure section 435.5, subdivision (a) requires the moving party, before filing a motion to strike, to meet and confer with the party who filed the pleading. Subdivision (a)(3) requires the moving party to file a declaration with the motion stating either the means by which the parties met and conferred, or that the responding party failed to respond or to meet and confer in good faith. Defendant's moving papers contain no such declaration and reflect no meet-and-confer effort.

The sur-reply identifies the defendant as Tarin Holdings LLC and refers to Qasim Tarin as its agent. The FAC, however, names "Tarim Holdings, LLC." Plaintiff shall have the opportunity to correct this discrepancy in the amendment ordered below.

**Accordingly, the Court makes the following, additional orders:**

1. On the Court's own motion, Plaintiff is granted leave to file a Second Amended Complaint (SAC) naming the intended defendant in both the SAC and the summons. The SAC may name the LLC, Mr. Tarin individually, or both, as Plaintiff deems appropriate. Plaintiff shall file the SAC and obtain issuance of a summons thereon **no later than May 22, 2026**, and shall contemporaneously serve a copy of the summons and SAC by email on Attorney McClelland or other counsel of record.
2. Moving counsel represents Mr. Tarin, who states that he is a member of Tarin Holdings LLC, and previously offered to accept email service of the FAC. **No later than June 5, 2026**, moving counsel shall notify Plaintiff in writing whether counsel will accept service of the summons and SAC. This requires only a written response and does not order counsel or any party to accept service.
3. If there is no agreement to accept service, Plaintiff shall serve the summons and SAC on defendant/s in the manner required by law, and file proof of service with the Court, **no later than July 6, 2026**.
4. A further case management conference is set for **July 23, 2026 at 8:30 a.m. in Department 16**. The case management statements shall advise the Court of the status of service.

17. 9:00 AM CASE NUMBER: C24-01654  
CASE NAME: MARIA ROSILLO VS. ANTIOCH DUNES HEALTHCARE, LLC, A LIMITED LIABILITY COMPANY  
\*HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM  
FILED BY: ROSILLO, MARIA ISALIA MONCADA